

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

KEVIN COFFMAN HUTCHINSON,

Petitioner

VS.

SAMUEL RAK,

Respondent

) Case Number: FDI-25-802175

) Hearing Date: May 12, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE SPOUSAL OR PARTNER SUPPORT, ATTORNEY FEES AND COSTS,
PROPERTY CONTROL, DEED ISSUE

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner Kevin Hutchinson and Respondent Samuel Rak. The parties married on 5/29/2014. The parties agree they separated in 2025, for a marriage of at least 11 years.
- 2) On 12/16/2025, Respondent filed a Request for Order seeking temporary spousal support, attorney's fees, and other orders.
- 3) The hearing on Respondent's 12/16/2025 Request for Order was originally set for 2/24/2026, but was continued to 5/12/2026 by agreement of the parties.
- 4) On 2/23/2026, a Stipulation and Order was filed which provides in relevant part:
 - a. Respondent would be imputed with full-time, \$20 per hour minimum wage income.
 - b. Petitioner shall pay Respondent \$5,714 per month in temporary guideline spousal support effective 3/1/2026.

- 1 c. Petitioner shall pay Smith / Ostler spousal support on income received above his base
2 income.
- 3 d. Temporary spousal support shall be reviewed and may be modified retroactive to
4 5/3/2026 “which is the date [Petitioner]’s period of severance pay expires.”
- 5 e. Respondent shall participate in a vocational evaluation to be paid for by Petitioner.
- 6 f. Petitioner shall pay the carrying costs for the Aptos property where Respondent resides.
- 7 g. Respondent shall have temporary exclusive use of the Aptos property.
- 8 h. Petitioner shall have temporary exclusive use of the San Francisco apartment.
- 9 i. Petitioner shall pay Respondent \$10,000 for attorney’s fees and costs under Family Code
10 section 2030 “without prejudice to [Respondent]’s right to seek future need-based
11 attorney fee requests.”
- 12 j. The 2/24/2026 hearing shall be continued to 5/12/2026 “for a review of temporary
13 spousal support and any other issues raised by [Respondent]’s Request for Order.”
- 14 5) On 4/28/2026, Petitioner filed a Supplemental Declaration. Petitioner asks the Court to make the
15 following orders:
- 16 a. Effective May 3, 2026, temporary spousal support shall be modified to \$288 per month
17 payable by Sam to me, per the XSpouse calculation attached as Exhibit A (which is based
18 on Petitioner earning \$0 and Respondent earning \$500 per month).
- 19 b. Effective May 3, 2026, I am no longer ordered to continue to pay the mortgage, utilities,
20 homeowners' insurance and property taxes on 2119 Penasquitas Dr., Aptos CA ("Aptos
21 Property"), and
- 22 c. All other orders contained in the Stipulation and Order filed on February 23, 2026, not in
23 conflict with the Court’s new orders, shall remain in effect.
- 24 6) On 4/28/2026, Petitioner filed an Income and Expense Declaration. Petitioner states his prior
25 position of employment ended on 2/2/2026. Petitioner lists no current sources of income.
26 Petitioner states he has \$20,212 in cash savings, \$1,000 in investments, and \$1.5 million in real
27 and personal property assets (including retirement assets). Petitioner also states that his monthly
28 expenses total \$11,480.
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1 7) On 5/1/2026, Respondent filed a Reply Declaration. Respondent asks the Court to make the
2 following orders:

- 3 a. Petitioner shall register two temporary employment agencies (immediately) and provide
4 verification to Respondent's Counsel. Petitioner shall apply for at least 10 jobs a week
5 and keep records. The records shall be provided to Respondent's Counsel monthly, at the
6 end of the month. These records must include the name and address of each potential
7 employer, the date of the job application and/or interview, the name and address of the
8 potential employer to whom a resume was sent, the name and address of all employment
9 agencies with which the Petitioner is registered and documentation to any follow up
10 efforts made with any potential employer. In the event Petitioner becomes employed, he
11 shall within 48 hours notify Respondent's counsel in writing with the name, telephone
12 number and address of the new employer, as well as the rate of pay. Failure to comply
13 may result in imputation of income to Petitioner. Any modification of support as a result
14 of Petitioner's employment shall be effective as of the date of employment.
- 15 b. Petitioner will undergo a vocational examination, and the parties will split the fees.
- 16 c. Temporary spousal support is set at \$0 without prejudice, subject to modification upon
17 Petitioner's re-employment, completion of vocational evaluation, and further financial
18 disclosure. Petitioner shall continue to pay all carrying costs for the Aptos property.
- 19 d. Parties shall exchange the following documents by June 1st: Bank account statements (all
20 accounts, individual or joint): past 3 years through present; Credit card and loan
21 statements: past 3 years through present; Brokerage account statements for all accounts
22 associated with any investment activity: past 3 years through present; Detailed brokerage
23 transaction reports, including but not limited to all records reflecting RSU grants, grant
24 agreements, vesting schedules, employer-issued equity compensation statements, and
25 proceeds of any sales, transfers, or movement of funds: past 3 years through present;
26 Complete tax documentation, including all filed returns with supporting schedules and
27 attachments: past 3 tax years; All Forms 1099 (including 1099-B, 1099-DIV, 1099-INT,
28 etc.): past 3 tax years; Form 8949 and Schedule D: past 3 tax years; Employment and
29 compensation documents from date of separation through present.

1 e. Sam will propose 3 names for the appraisal and Kevin can pick one.

2 f. Advance to Respondent of \$20,000 for attorney fees and costs from community funds
3 held in Petitioner's E*Trade brokerage account(s).

4 **B. Findings and Order**

5 1) Effective 5/3/2026 (the date Petitioner's period of severance pay expired), temporary spousal
6 support shall be set at \$0.

7 2) Effective 5/3/2026, Petitioner is no longer required to pay the carrying costs for the Aptos
8 property.

9 3) Effective immediately, Petitioner shall spend at least 30 hours per week using his best efforts to
10 seek and secure a position of paid employment. Petitioner must apply for at least 5 jobs per week.
11 Commencing June 2026, Petitioner shall provide to Respondent, through counsel, a log
12 documenting his work search efforts in the prior month. This log shall include the name and
13 address of each potential employer, the date of the job application and/or interview, the name and
14 address of all employment agencies with which the Petitioner is registered, and a statement
15 regarding any follow up efforts made with any potential employer.

16 4) In the event Petitioner becomes employed, he shall within 48 hours notify Respondent's counsel
17 in writing with the name, telephone number, and address of the new employer, as well as the rate
18 of pay. Any modification of support as a result of Petitioner's employment shall be effective as of
19 the date of employment.

20 5) If Respondent secures a position of paid employment for which he is compensated at a rate of
21 more than \$41,600 in gross annually (i.e., full-time income measured at \$20 per hour), he shall
22 within 48 hours notify Petitioner's counsel in writing with the name, telephone number, and
23 address of the new employer, as well as the rate of pay. Any modification of support as a result of
24 Respondent's new employment wherein he is compensated at a rate of more than \$41,600 in
25 gross annually shall be effective as of the date of new employment.

26 6) The Court will not set a review hearing at this time. Either party may file a new Request for
27 Order.
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- 1 7) Respondent may withdraw \$20,000 from community funds held in Petitioner's E*Trade
2 brokerage account(s) to pay for attorney's fees and costs as an advance of his share of the
3 community estate.
- 4 8) Respondent's request for orders related to documents to be exchanged and an appraisal are denied
5 without prejudice as those issues are beyond the scope of the 5/12/2026 hearing.
- 6 9) All other orders contained in the Stipulation and Order filed on February 23, 2026, not in conflict
7 with the Court's new orders, shall remain in full force and effect.
- 8 10) Respondent's attorney shall prepare the Findings and Order After Hearing.
- 9 11) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
10 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
11 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
12 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
13 proposed order after hearing directly to the court. Failure to submit the order after hearing within
14 10 days may allow the other party to prepare a proposed order and submit it to the court in
15 accordance with CA Rules of Court, Rule 5.125(d).
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